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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

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PART I : SECTION (I) — GENERAL

Government Notifications

My No.: IR/COM/04/2016/149.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956) as amended by Acts. No. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act No. 37 of 1968 dated 13.03.2020 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 2183/37 dated 09.07.2020 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 02.02.2020.

Mr. H. K. Nimal,
RG4,
Soyzapura,
Moratuwa.

and

State Engineering Corporation of Sri Lanka,
No. 130, W. A. D. Ramanayaka Mawatha,
Colombo 02.



was referred to Mr. Obadage Leelarathna for settlement by arbitration.

And whereas it is now deemed expedient that the said Order be revoked, I Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 13.03.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo,
25th February, 2021.

03 - 517/1

My No.: IR/COM/04/2016/149.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS an industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mr. H. K. Nimal,
RG 4,
Soyzapura,
Moratuwa.

and

State Engineering Corporation of Sri Lanka,
No. 130, W. A. D. Ramanayaka Mawatha,
Colombo 02.

Now therefore I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act No. 37 of 1968 hereby appoint.

Mr. A. V. Pushpakantha Nanayakkara,
132, Gonigoda,
Medawela,
Harispattuwa

to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo,
25th February, 2021.

My No.: IR/COM/04/2016/149.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. H. K. Nimal,
RG4,
Soyzapura,
Moratuwa.

and

State Engineering Corporation of Sri Lanka,
No. 130, W. A. D. Ramanayaka Mawatha,
Colombo 02.

Statement of matter in dispute

The matter in dispute between the aforesaid parties is.

Whether Mr. H. K. Nimal who joined the State Engineering Corporation of Sri Lanka as a Computer Operator in 1981 and worked as a Systems Assistant has been caused injustice by not been given the post of Systems Analyst/Programmer from 1996, the arrears of salary, overtime payments and other allowances relevant not being paid the allowance for covering duties in the post of Data Entry Supervisor from 01.01.2006 and the deduction of Rs. 15 from salary as per the 1991 salary revision and if so, to what relief he is entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Office of the Commissioner General of Labour,
Colombo,
23rd February, 2021.
03 - 517/2

My No.: IR/COM/01/2018/191.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956) as amended by Acts. No. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act No. 37 of 1968 dated 24.11.2020 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 2208/15 dated 30.12.2020 the Industrial Dispute in respect of the matter specified in the statment of the Commissioner General of Labour dated 20.11.2020.

Mr. P. Padmini Fernando,
No. 02/02, Daham Pasal Mawatha,
Wewala, Piliyandala.

and

Buddhist and Pali University of Sri Lanka,
No. 37, Moragahahena Road,
Pitipana, Homagama.

was referred to Mr. P. Nawarathne for settlement by arbitration.

And whereas it is now deemed expedient that the said Order be revoked, I Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 24.11.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo,
02nd March, 2021.

03 - 518/1

My No.: IR/COM/01/2018/191.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS an industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mrs. P. Padmini Fernando,
No. 02/02, Daham Pasal Mawatha,
Wewala, Piliyandala.

and

Buddhist and Pali University of Sri Lanka,
No. 37, Moragahahena Road,
Pitipana, Homagama.

Now therefore I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act No. 37 of 1968 hereby appoint.

Mr. Janajith De Silva,
Attorney-at-Law,
9, Usawiya Road,
Gampaha.

to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo,
02nd March, 2021.

My No.: IR/COM/01/2018/191.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mrs. P. Padmini Fernando,
No. 02/02, Daham Pasal Mawatha,
Wewala, Piliyandala.

And

Buddhist and Pali University of Sri Lanka,
No. 37, Moragahahena Road,
Pitipana, Homagama.

Statement of matter in dispute

The matter in dispute between the aforesaid parties is.

Whether Mrs. P. Padmini Fernando who worked as the Bursar of the Buddhist and Pali University of Sri Lanka from 03.01.2011 to 03.01.2016 had been caused injustice by not being confirmed in employment and if so, to what relief she is entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Office of the Commissioner General of Labour,
Colombo,
01st March, 2021.

03 - 518/2

My No.: IR/COM/03/2018/183.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956) as amended by Acts. No. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act No. 37 of 1968 dated 03.04.2020 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 2183/36 dated 09.07.2020 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 31.01.2020.

Mr. W. A. A. Chaminda,
No. 64/5A,
Gammada Road,
Mathammana,
Minuwangoda.

And

Sri Lanka Ports Authority,
No. 19, Chaithya Road,
Colombo 01.

was referred to Miss. H. M. Anulawathi for settlement by arbitration.

And whereas it is now deemed expedient that the said Order be revoked, I Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 03.04.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo,
25th February, 2021.

03 - 519/1

My No.: IR/COM/03/2018/183.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS an industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between.

Mr. W. A. A. Chaminda,
No. 64/5A,
Gammada Road,
Mathammana,
Minuwangoda.

And

Sri Lanka Ports Authority,
No. 19, Chaithya Road,
Colombo 01.

Now therefore I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act No. 37 of 1968 hereby appoint, Mr. Don Lakmal Saman Kumara Wickramaarachige, Attorney-at-Law, No. 881, Bingiriya, to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo,
25th February, 2021.

My No.: IR/COM/03/2018/183.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. W. A. A. Chaminda,
No. 64/5A,
Gammada Road,
Mathammana,
Minuwangoda.

And

Sri Lanka Ports Authority,
No. 19, Chaithya Road,
Colombo 01.

Statement of matter in dispute

The matter in dispute between the aforesaid parties is.

Whether the termination from employment on 17.10.2016 of Mr. W. A. A. Chaminda who had been employed in the Sri Lanka Ports Authority from 18.02.2000 is just and equitable and if and if not so, to what relief he is entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Office of the Commissioner General of Labour,
Colombo,
24th February, 2021.

03 - 519/2